

TRUSTS

IN RE: DONALD LEE GALUSHA AND ANN MARIE GALUSHA 2022 REVOCABLE LIVING TRUST

CASE NUMBER: 26PB-0033482

This matter is on calendar for hearing on a Petition for Order Determining Trust's Title to Real Property. The matter has been properly noticed with proof of service on file. No objections have been raised. The Petition fails to establish that the Trustor intended to hold the subject property in Trust. The basis for the Petition is that, because the Trustor executed a pour-over will, she intended to hold the subject property in the name of the Trust. A pour-over will indicates an intent that any property not held in Trust at time of death be devised to the Trust after death. A pour-over will does not support a present intent to hold the subject property in the name of the Trust during the decedent's lifetime. No other evidence was provided to show the decedent had a present intent to hold the subject property in Trust while she was living. Additionally, the Petition assumes that the Trustor did not realize the property was not held in the name of the Trust and would have transferred the subject real property in the name of the Trust if she had known. There is no evidence to support this assumption. The Petition is **DENIED** without prejudice. The clerk is instructed to close the file. **No appearance is necessary on today's calendar.**

IN RE: GEORGE E. HERRICK AND M. GLORIA HERRICK 2003 REVOCABLE TRUST DATED JULY 29, 2003

CASE NUMBER: CVPB20-0030695

This matter is on calendar for further proceedings on a Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. The matter has been continued several times to allow for the filing of copy of the settlement agreement from October of 2025. A copy of the settlement agreement has still not been filed, therefore the Court is unable to determine the terms of the agreement, whether the agreement resolves all pending petitions and motions, and whether the requested judgment is appropriate. The Court notes a new Notice of Hearing has not been filed and served for today's date. A Status Report has been filed which indicates the parties are attempting to settle the matter informally and request a continuance. The matter is continued to **Monday, October 19, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Motion to Enforce Settlement Agreement and all remaining Petitions and Motions. **No appearance is necessary on today's calendar.**

IN RE: JAMES W. SACCO AND JOYCE A. COX REVOCABLE TRUST OF 2010

CASE NUMBER: 26PB-0033520

This matter is on calendar for hearing on a Petition for Orders Compelling an Accounting and for Costs and Attorney's Fees. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED** to the extent that it requests an order compelling an accounting. The determination of attorney's fees and costs which shall be determined by the filing of a noticed motion. A proposed Order has been lodged and will be modified to reflect the Court's ruling. The matter is continued to **Monday, November 23, 2026, at 2:30 p.m. in Department 44** for status of accounting. **No appearance is necessary on today's calendar.**